

STATE OF NEW YORK

3041--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. KELLES, COLTON, CRUZ, TAYLOR, SIMON, SAYEGH, BURDICK, DAVILA, ZACCARO -- read once and referred to the Committee on Education -- recommitted to the Committee on Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law and the mental hygiene law, in relation to requiring training for teachers and administrators in the area of mental health response training

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 3004 of the education law is amended by adding two new subdivisions 7 and 8 to read as follows:

7. No later than twelve months after the effective date of this subdivision, the commissioner, in conjunction with the office of mental health, shall require the training of teachers and administrators in the area of mental health response training. Such mental health response training shall include instruction in:

a. the recognition of the signs and symptoms of present or developing mental health crises or illnesses;

b. the appropriate response to mental health crises including but not limited to attempted suicide or suicidal ideation, the threat or practice of self-harm or harm to others, substance use disorders, depression, anxiety and panic attacks, and other mental health crises or illnesses as determined by the commissioner;

c. identifying and sharing information with students and with individuals the student identifies as part of their support system and provides their consent to engage with, as determined by the commissioner but which shall include but not be limited to, about mental health professionals, services and resources, the role of familial and social supports for the prevention, treatment, and recovery from mental illness.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 8. Mental health response training shall not include training in the
2 diagnosis, treatment, or counseling of students, peers, or members of
3 the community. Nothing in this section shall be deemed to allow a
4 person to provide any service for which a license, registration, certif-
5 ication or other authorization under title eight of this chapter is
6 required and which the person does not possess. The commissioner is
7 authorized to promulgate rules and regulations necessary to establish
8 such training pursuant to this section.

9 § 2. Section 7.07 of the mental hygiene law is amended by adding a new
10 subdivision (i) to read as follows:

11 (i) The office of mental health shall advise and assist the commis-
12 sioner of education in developing a training outline for teachers and
13 administrators in the area of mental health response training as
14 described in section three thousand four of the education law.

15 § 3. This act shall take effect immediately.